

MORGANFIELD VS. SILVERSTEIN, MD, ET AL.

CASE NUMBER: 25CV-0207462

This matter is on calendar for trial setting. The Court designates this matter as a plan II case and intends to set the matter for trial no later than October 6, 2026. Plaintiff has posted jury fees but Defendants have not. Defendants are granted 10 days leave to post jury fees. A failure to post jury fees in that time will be deemed a waiver of the right to a jury. The parties are ordered to appear to provide the Court with available trial dates.

MUNNERLYN, ET AL. VS. MARTIN, ET AL.

CASE NUMBER: 24CV-0205402

This matter is on calendar for review regarding status of Mr. Martin's request to set aside default. No motion has been filed. Additionally, the Court is in receipt of multiple JUD-100s and the procedural history is summarized below.

On September 30, 2025, Plaintiffs Timothy and Kellie Munnerlyn obtained entry of default on their complaint (filed July 1, 2024) against Defendant Jonathan Martin only.

On May 29, 2026, Plaintiffs submitted a proposed order for default judgment, using Judicial Council form JUD-100. In the proposed default judgment, Plaintiffs seek monetary damages in the amount of \$41,253.85. The Court declined to execute the proposed judgment pending the outcome of the pending trial as to the other defendant Ms. Holley.

On June 23, 2026, Plaintiffs Timothy and Kellie Munnerlyn appeared for trial. Ms. Holley and Mr. Martin appeared. Mr. Martin indicated he had not been served and did not know he was in default. The Court continued his case until August 3, 2026 so he could attempt to set aside his default. No motion has been filed.

Upon further review of the file, it appears Mr. Martin was served the Summons and Complaint by Substitute Service on August 5, 2024 and was personally served a Statement of Damages on July 9, 2025.

The trial proceeded and Ms. Holley left the courtroom to contact her witnesses. She never returned and the trial proceeded in her absence. The Court found for the plaintiffs in the amount of \$41,253.85 and ordered them to submit a judgment consistent with the outcome of the trial.

On June 29, 2026, the Plaintiffs Timothy and Kellie Munnerlyn filed a Judicial Council form JUD-100 as to Ms. Holley only.

The general rule is that there can be only one final judgment in an action. (*Bank of America v. Superior Court* (1942) 20 Cal.2d 697, 701.) The Munnerlyns are instructed to file one JUD-100 form as to both defendants. An appearance is necessary on today's calendar for the Munnerlyns to address the court and confirm they will file one JUD-100 form and for Mr. Martin to provide the Court a status update regarding his request to set aside default.